

**SUBSTITUTE FOR
HOUSE BILL NO. 4896**

A bill to amend 1978 PA 368, entitled
"Public health code,"
by amending sections 17001 and 17011 (MCL 333.17001 and 333.17011),
section 17001 as amended by 2018 PA 624 and section 17011 as
amended by 2006 PA 398.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 17001. (1) As used in this part:

2 (a) "Academic institution" means either of the following:

3 (i) A medical school approved by the board.

4 (ii) A hospital licensed under article 17 that meets all of the
5 following requirements:

6 (A) Was the sole sponsor or a co-sponsor, if each other co-
7 sponsor is either a medical school approved by the board or a



1 hospital owned by the federal government and directly operated by
 2 the United States Department of Veterans Affairs, of not less than
 3 4 postgraduate education residency programs approved by the board
 4 under section 17031(1) for not less than the 3 years immediately
 5 preceding the date of an application for a limited license under
 6 section 16182(2)(c) or an application for a full license under
 7 section ~~17031(2)~~, **17031(2)(a)**, if at least 1 of the residency
 8 programs is in the specialty area of medical practice, or in a
 9 specialty area that includes the subspecialty of medical practice,
 10 in which the applicant for a limited license proposes to practice
 11 or in which the applicant for a full license has practiced for the
 12 hospital.

13 (B) Has spent not less than \$2,000,000.00 for medical
 14 education during each of the 3 years immediately preceding the date
 15 of an application for a limited license under section 16182(2)(c)
 16 or an application for a full license under section ~~17031(2)~~.
 17 **17031(2)(a)**. As used in this sub-subparagraph, "medical education"
 18 means the education of physicians and candidates for degrees or
 19 licenses to become physicians, including, but not limited to,
 20 physician staff, residents, interns, and medical students.

21 (b) "Electrodiagnostic studies" means the testing of
 22 neuromuscular functions utilizing nerve conduction tests and needle
 23 electromyography. It does not include the use of surface
 24 electromyography.

25 (c) "Genetic counselor" means an individual who is licensed
 26 under this part to engage in the practice of genetic counseling.

27 (d) "Medical care services" means those services within the
 28 scope of practice of physicians who are licensed or authorized by
 29 the ~~board~~, **department**, except those services that ~~the board~~



~~prohibits~~**are prohibited** or otherwise ~~restricts~~**restricted** within a practice agreement or ~~determines~~ shall not be delegated by a physician because a delegation would endanger the health and safety of patients as provided for in section 17048(1).

(e) "Participating physician" means a physician, a physician designated by a group of physicians under section 17049 to represent that group, or a physician designated by a health facility or agency under section 20174 to represent that health facility or agency.

(f) "Physician" means an individual who is licensed or authorized under this article to engage in the practice of medicine.

(g) "Podiatrist" means an individual who is licensed under this article to engage in the practice of podiatric medicine and surgery.

(h) "Practice agreement" means an agreement described in section 17047.

(i) "Practice as a physician's assistant" means the practice of medicine with a participating physician under a practice agreement.

(j) ~~(i)~~ "Practice of genetic counseling" means provision of any of the following services:

(i) Obtaining and evaluating individual, family, and medical histories to determine the genetic risk for genetic or medical conditions or diseases in a client, the client's descendants, or other family members of the client.

(ii) Discussing with a client the features, natural history, means of diagnosis, genetic and environmental factors, and management of the genetic risks of genetic or medical conditions or



1 diseases.

2 (iii) Identifying and coordinating appropriate genetic
3 laboratory tests and other diagnostic studies for genetic
4 assessment of a client.

5 (iv) Integrating genetic laboratory test results and other
6 diagnostic studies with personal and family medical history to
7 assess and communicate a client's risk factors for genetic or
8 medical conditions or diseases.

9 (v) Explaining to a client the clinical implications of
10 genetic laboratory tests and other diagnostic studies and their
11 results.

12 (vi) Evaluating the responses of a client and the client's
13 family to a genetic or medical condition or disease or to the risk
14 of recurrence of that condition or disease and providing client-
15 centered counseling and anticipatory guidance.

16 (vii) Identifying and utilizing community resources that
17 provide medical, educational, financial, and psychosocial support
18 and advocacy to a client.

19 (viii) Providing written documentation of medical, genetic, and
20 counseling information for families of and health care
21 professionals of a client.

22 (k) ~~(j)~~ "Practice of medicine" means the diagnosis, treatment,
23 prevention, cure, or relieving of a human disease, ailment, defect,
24 complaint, or other physical or mental condition, by attendance,
25 advice, device, diagnostic test, or other means, or offering,
26 undertaking, attempting to do, or holding oneself out as able to
27 do, any of these acts.

28 ~~(k) "Practice as a physician's assistant" means the practice~~
29 ~~of medicine with a participating physician under a practice~~



1 ~~agreement.~~

2 (l) "Qualified supervisor" means an individual who is a genetic
3 counselor and who holds a license under this part other than a
4 temporary or limited license.

5 (m) "Task force" means the joint task force created in section
6 17025.

7 (n) "Temporary licensed genetic counselor" means a genetic
8 counselor who has been issued a temporary license under this
9 article.

10 (2) In addition to the definitions in this part, article 1
11 contains definitions and principles of construction applicable to
12 all articles in this code and part 161 contains definitions
13 applicable to this part.

14 Sec. 17011. (1) An individual shall not engage in the practice
15 of medicine or practice as a physician's assistant unless licensed
16 or otherwise authorized by this article. An individual shall not
17 engage in teaching or research that requires the practice of
18 medicine unless the individual is licensed or otherwise authorized
19 by this article.

20 (2) Notwithstanding section 16145 or rules promulgated under
21 that section, the board may grant a license to an individual who
22 meets the requirements of section 16186 or ~~17031(2)~~ **17031(2) (a) or**
23 **(b)** after reviewing the applicant's record of practice, experience,
24 and credentials and determining that the applicant is competent to
25 practice medicine.

26 (3) For individuals applying for licensure under section
27 16186, the board shall not impose requirements on graduates of
28 medical schools located outside the United States or Canada that
29 exceed the requirements imposed on graduates of medical schools



1 located in the United States or Canada.

2 (4) Notwithstanding section 16145 or rules promulgated under
3 that section, the board may grant a license in accordance with
4 section 16186 after determining that each of the following
5 conditions is satisfied:

6 (a) The applicant has disclosed that a sanction is in force
7 against ~~him or her~~ **the applicant** as described in section
8 16174(2)(b) and considering the reasons for the sanction and the
9 applicant's record of practice, experience, credentials, and
10 competence to engage in the practice of medicine, that sanction
11 should not prevent the applicant from being granted a license in
12 this state.

13 (b) The sanction imposed by the other state is not permanent.

14 (c) The sanction imposed by the other state was not the result
15 of a patient safety violation.

16 (d) If the applicant was required by the state that imposed
17 the sanction to participate in and complete a probationary period
18 or treatment plan as a condition of the continuation of ~~his or her~~
19 **the applicant's** licensure, the applicant did not complete the
20 probationary period or treatment plan because the applicant ceased
21 engaging in the practice of medicine in that state.

22 (e) As a condition of licensure under this subsection, the
23 applicant voluntarily agrees to complete a probationary period or
24 treatment plan, the terms of which are no less stringent than those
25 imposed by the state that imposed the sanction.

26 (5) Except as otherwise provided in this subsection, the
27 following words, titles, or letters or a combination ~~thereof, of~~
28 **the following words, titles, or letters**, with or without qualifying
29 words or phrases, are restricted in use only to those individuals



1 authorized under this part to use the terms and in a way prescribed
2 in this part: "doctor of medicine", "m.d.", "physician's
3 assistant", and "p.a.". Notwithstanding section 16261, an
4 individual who was specially trained at an institution of higher
5 education in this state to assist a physician in the field of
6 orthopedics and, upon completion of training, received a 2-year
7 associate of science degree as an orthopedic physician's assistant
8 before January 1, 1977 may use the title "orthopedic physician's
9 assistant" whether or not the individual is licensed under this
10 part.

11 Enacting section 1. This amendatory act does not take effect
12 unless House Bill No. 4925 of the 103rd Legislature is enacted into
13 law.